



**U.S. Customs and
Border Protection**

PUBLIC VERSION

October 30, 2025

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Re: EAPA Case No. 8137 – Notice of Determination as to Evasion

To the Counsel and Representatives of the above-referenced entities:

Pursuant to an examination of the record in Enforce and Protect Act (EAPA) Investigation 8137, U.S. Customs and Border Protection (CBP) has determined there is substantial evidence that Island Home Building Materials, Inc. (the Importer or Island Home) entered merchandise covered by antidumping duty (AD) order A-570-106 and countervailing duty (CVD) order C-570-107 on wooden cabinets and vanities (WCVs), and components thereof, into the customs territory of the United States through evasion.¹

Substantial evidence demonstrates that Island Home imported Chinese-origin WCVs that were transshipped through Taiwan. As a result, no cash deposits were applied to the merchandise at the time of entry. The basis for CBP's determination is explained below.

¹ See *Wooden Cabinets and Vanities and Components Thereof from the People's Republic of China*, 85 FR 22126 (April 21, 2020). See also *Wooden Cabinets and Vanities and Components Thereof from the People's Republic of China*, 85 FR 22134 (April 21, 2020) (collectively, the Orders).

I. Background & Procedural History (Pre-Interim Measures)

Allegation, Formal Receipt, and Initiation

On December 20, 2024, Newport Pacific Cabinets, Inc. (the Alleger or Newport)² filed an EAPA allegation alleging that Island Home evaded the *Orders* by importing WCVs from China into the United States, which were transshipped through Taiwan.³ On January 6, 2025, the Trade Remedy Law Enforcement Directorate (TRLED), within CBP's Office of Trade, formally acknowledged receipt of the Alleger's properly filed EAPA Allegation concerning evasion by Island Home, in accordance with 19 C.F.R. § 165.12(a).⁴ TRLED found the information provided in the Allegation reasonably suggested that Island Home entered covered merchandise into the customs territory of the United States through evasion.⁵ Consequently, CBP initiated an investigation on January 29, 2025, pursuant to Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, commonly referred to as EAPA.⁶

According to the Allegation, Island Home imported Chinese-origin WCVs that were transshipped through Taiwan by Ascension Y.S. Int. Co., Ltd. (Ascension)⁷ and declared the wooden cabinets as Taiwanese-origin, not subject to AD and CVD duties.⁸ To support this contention, the Alleger supplied Taiwanese import data for a Harmonized Tariff Schedule (HTS) code subheading covering WCVs.⁹ The data revealed Chinese exports to Taiwan of merchandise covered by the *Orders* increased substantially after the imposition of preliminary duties on WCVs from China in 2019.¹⁰ The general trade data also revealed that, after the imposition of preliminary AD/CVD duties, the volume of WCVs imported into the United States from China decreased sharply while volumes imported from Taiwan surged.¹¹ The Alleger argued that these sudden shifts in trade trends, shortly after the implementation of preliminary AD/CVD duties on WCVs, is indicative of transshipment.

² The Alleger is a U.S. importer of covered merchandise; thus, pursuant to 19 C.F.R. § 165.1(2), the Alleger meets the definition of an interested party that is permitted to submit an EAPA allegation.

³ See Letter from the Alleger, "Wooden Cabinets and Vanities and Components Thereof from the People's Republic of China: Request for an Investigation under the Enforce and Protect Act," dated December 20, 2024 (the Allegation).

⁴ See email "Receipt of Properly Filed Allegation" dated January 6, 2025.

⁵ See the Allegation.

⁶ See Memoranda, "Initiation of Investigation for EAPA Case Number 8137," dated January 29, 2025.

⁷ Ascension is a supplier of wooden cabinets and vanities based in Taiwan. See also Allegation at 8-11 and Exhibits 13-14.

⁸ See Allegation at 5 and Exhibit 2.

⁹ *Id.* at 7 and Exhibit 6.

¹⁰ *Id.*

¹¹ *Id.* at 5-6 and Exhibit 3.

The Allegation also included a declaration from [[name and title](#)], who is familiar with the production capacity and available supply for the wooden cabinet industry globally.¹² The declarant stated that producing cabinets in Taiwan is prohibitively expensive and that, in his over 35 years in the cabinet industry, he has never heard of Taiwanese-origin cabinets in the U.S. market.¹³ This assertion was supported by trade news reporting that Taiwan’s wooden furniture manufacturers migrated to China and that Taiwan’s wooden furniture industry is struggling, citing supply chain issues, increasing production costs, and competition from emerging markets in the third world, among other reasons.¹⁴ Further, [[name](#)] assessment is corroborated by bill of lading data tracking shipments of WCVs by Ascension. According to the Allegation and information from [[data source](#)]: “Between June 2021 and July 2024, Ascension sent 102 shipments of wooden cabinets to Island Home...Thirty-six of these shipments listed Shanghai, China as the port of departure, and 56 listed Ning Bo, China as the port of departure.”¹⁵ [[name](#)] provided shipment details of container ship number CMAU7804957 showing a shipment from Ascension, via Kaohsiung, Taiwan, that originated from Ningbo, China.¹⁶

The declarant’s assertion was bolstered by [[name](#)], a foreign market researcher who was hired to investigate Ascension’s location on the ground in Taiwan.¹⁷ Through a review of Taiwanese Ministry of Economic Affairs records, the foreign market researcher was able to determine that Ascension was incorporated in September 2020, just months after the *Orders* were implemented. The researcher also [

[description of investigative activity](#)

].¹⁸ Additionally, a Dun & Bradstreet business profile of Ascension described it as a “merchant wholesaler,” not a manufacturing company.¹⁹

Further, Newport’s Allegation provided U.S. import shipment data from [[data source](#)] showing that Island Home imported a significant amount of merchandise described as “wooden cabinets” with Ascension as the declared shipper.²⁰ The Allegation showed that Island Home has likely imported WCVs declared as Taiwanese-origin even though Taiwan has little known WCV production. [[name](#)] observations of Island Home’s pricing of WCVs compared to [[entity](#)] pricing suggests that Island Home is importing Chinese-origin merchandise without

¹² *Id.* at 8 and Exhibit 1.

¹³ *Id.*

¹⁴ *Id.* at 8 and Exhibit 9.

¹⁵ *Id.* at 9-10 and Exhibit 2.

¹⁶ *Id.* at 10 and Exhibit 12.

¹⁷ *Id.* at 10 and Exhibit 11.

¹⁸ *Id.* at 11 and Exhibit 11.

¹⁹ *Id.* at 10 and Exhibit 14.

²⁰ *Id.* at 4 and Exhibit 2.

paying AD/CVD duties. [name] stated that Island Home was able to price its cabinets on average about 15 to 20 percent cheaper than [entity] prices due to evasion of AD/CVD duties.²¹

In assessing the facts provided in the Allegation, CBP found that the information submitted by Newport reasonably suggested that Island Home entered merchandise covered by the *Orders* into the customs territory of the United States through evasion. Specifically, commercial trade data reasonably available to the Alleger showed that Island Home's supplier of Chinese-origin wooden cabinets was likely Ascension, and that Island Home declared Taiwan as the country of origin for its wooden cabinet imports. Further, the general trade data provided in the Allegation showed a clear shift in trade trends immediately following the imposition of preliminary AD/CVD duties on WCVs from China. This general trade data showed that imports from China to Taiwan surged, correlated with a sharp decrease in imports of WCVs to the United States from China, and showed a subsequent increase in imports to the United States from Taiwan. Finally, the facts provided in the Allegation point to a lack of production of wooden cabinets and vanities in Taiwan and is supported by an affidavit and local reporting on the wooden furniture industry.

Post Initiation

On February 6, 2025, CBP issued a Customs Form 28 (CF-28) to Island Home for entry numbers [#]0479 (entry 0479), [#]2418 (entry 2418), and [#]5072 (entry 5072) requesting various information, including documentation substantiating the declared manufacturer's purchase of raw materials, the production of the covered merchandise, and entry documentation.²² Island Home submitted a response to the CF-28 request on March 8, 2025.²³

Island Home reported that Ascension was the exporter of the selected entries. In its CF-28 response, Island Home indicated that Ascension purchased the WCVs from an affiliated Taiwanese company, EN-FA Woodcraft Incorporated (EN-FA). Island Home submitted documentation showing that Ascension is affiliated with EN-FA through Zhang Zhijie, who was identified as the Director of EN-FA with a 24% shareholder percentage and the Executive Director of Ascension with a 100% shareholder percentage.²⁴ Notably, Ascension was listed as the manufacturer in block 13 of the CF-7501 entry summary form for each of the selected entries.²⁵ As explained below, Island Home did not provide complete information in its CF-28 responses and there were multiple discrepancies in the information it did submit; therefore, CBP

²¹ *Id.* at 11 and Exhibit 1.

²² See the CF-28 request for entries [#]0479, [#]2418, and [#]5072 issued to Island Home on February 6, 2025 (CBP's CF-28 Requests). The entry documents for all three entries indicate the imported merchandise is WCVs as described in the *Orders*.

²³ See Island Home's CF-28 Response, dated March 8, 2025.

²⁴ See CBP's CF-28 Requests and Island Home's CF-28 Response at Exhibit 6.

²⁵ See CBP's CF-28 Requests at 3 and Island Home's CF-28 Response at Exhibits 1.1, 1.2, and 1.3.

was unable to use Island Home's CF-28 Responses to authenticate the country of origin for entries 0479, 2418, and 5072.

In the CF-28 requests sent to Island Home, CBP asked for pictures, descriptions, and information regarding production capacity for each piece of equipment in its supplier's factory.²⁶ Island Home submitted a spreadsheet with the requested information.²⁷ However, the listed production capacity for each piece of equipment stated "20 containers per month" and did not contain production capacity specific to different parts or finished assemblies of WCVs.²⁸ CBP notes that many factors can be attributed to overall production capacity, including the type of machinery, its age and condition, the nature of the production process, and the skill of the operators. However, in its response, Island Home only listed two machines capable of cutting, one electronic saw and one sliding table saw, both with a production capacity of 20 containers per month.²⁹ Island Home also listed ten spray guns for product painting, also with a production capacity of 20 containers per month.³⁰ CBP found it unlikely that these different pieces and quantities of equipment have the exact same maximum production capacity due to various factors, including the inherent differences in their design, technology, and intended use. Each machine specializes in a specific task or product, leading to variations in speed, precision, and overall output capabilities. Island Home did not provide any itemized information regarding how many units or items each machine produced. Because Island Home failed to provide sufficient production capacity documentation, CBP was unable to rely on the submitted production capacity information to determine whether EN-FA had the capability to produce the merchandise in entries 0479, 2418, and 5072; therefore, CBP was unable to rely on this information to determine whether Island Home's imports of WCVs were produced in EN-FA's Taiwanese facility.

As requested, Island Home provided EN-FA's production records and packing lists for entries 0479, 2418, and 5072. The production records suggested that EN-FA produced several parts of WCVs; however, the parts listed in EN-FA's production records did not match the parts listed in EN-FA's packing lists.³¹ It is important for the production records to match or link to the packing lists because it provides proof that the merchandise produced by the foreign manufacturer is what is being exported to the United States. Because Island Home's documentation for production records and packing lists contained discrepancies, CBP could not rely on these documents to verify that EN-FA produced the WCVs associated with entries 0479, 2418, and 5072 in Taiwan.

²⁶ See CBP's CF-28 Requests.

²⁷ See CBP's CF-28 Requests and Island Home's CF-28 Response at Exhibit 4.

²⁸ *Id.*

²⁹ *Id.*

³⁰ *Id.*

³¹ See CBP's CF-28 Requests and Island Home's CF-28 Response at Exhibits 2.1, 2.2, 2.3, and entry packets.

Island Home provided sales and production records, raw material purchases, and packing material purchases for each of the requested entries. For each of the entries, raw materials were purchased before the purchase order for the WCVs was received. There was no documentation provided linking those raw materials to the finished products contained in the entries.³² In particular, the production records did not specify which raw materials were used for production. Failure to provide evidence linking raw materials to production records suggests that Island Home could not substantiate whether the raw material purchase orders provided in the CF-28 response actually tied to WCVs produced at EN-FA's facility. Without proper raw material and production documentation, CBP was unable to rely on Island Home's CF-28 Response to determine country of origin or to determine EN-FA's ability to produce the WCVs.

Additionally, CBP requested stamped timecards to be included with the factory production records, but no timecards nor an explanation of their absence were included in the response.³³ CBP relies on copies of timecard documentation to substantiate that foreign manufacturers employ company personnel to produce covered merchandise. Thus, with incomplete information, CBP cannot rely on Island Home's CF-28 Response to corroborate that EN-FA had sufficient labor to produce WCVs.

CBP also requested original commercial invoice(s), proof of payment(s), and purchase orders for each of the selected entries. Island Home provided commercial invoices and purchase orders but did not include proof of payment in its response.³⁴ CBP relies on proof of payment to link the sale of imports to the foreign supplier. Without this complete information, CBP was unable to determine who received the proceeds of the sales and if the commercial invoices and purchase orders are linked to entries 0479, 2418, and 5072, or Ascension in Taiwan.

Overall, Island Home's CF-28 Response did not provide all the information requested by CBP, and CBP needed all that information to be able to determine the country of origin. Namely, Island Home did not provide complete responses for EN-FA's production capacity, documentation linking raw materials to production and then to the entries imported, documentation linking production to packing lists, timecards showing adequate personnel to produce, nor proof of payments made to Ascension. Therefore, TRLED was unable to rely on the information contained in the Island Home CF-28 Response to determine if Island Home's supplier could produce WCVs and/or to determine what was the correct country of origin of the imported WCVs.

³² See CBP's CF-28 Requests and Island Home's CF-28 Response at Exhibits 2.1, 2.2, 2.3, 3.1, 3.2, 3.3, 5.1, 5.2, and 5.3.

³³ See CBP's CF-28 Requests; *see also* Island Home's CF-28 Response.

³⁴ *Id.*

In assessing the record evidence, CBP found that based on the information submitted in the Allegation and the discrepancies in Island Home's CF-28 Response, there was reasonable suspicion that Island Home entered merchandise covered by the *Orders* into the customs territory of the United States through evasion by failing to declare the merchandise as subject to, and subsequently failing to pay, AD/CVD duties on covered merchandise.

II. Interim Measures

Not later than ninety (90) calendar days after initiating an investigation under EAPA, CBP will decide based on the record evidence of the investigation if there is reasonable suspicion that such merchandise covered by the *Order* was entered into the United States through evasion. CBP need only have sufficient evidence to support a reasonable suspicion that the importer alleged to be evading the *Order* entered merchandise covered by an AD and/or CVD order into the customs territory of the United States by a materially false statement or act, or material omission, that resulted in the reduction or avoidance of applicable AD and/or CVD cash deposits or other security. If reasonable suspicion exists, CBP will impose interim measures pursuant to 19 U.S.C. § 1517(e) and 19 C.F.R. § 165.24.

After evaluating the information on the record, on May 6, 2025, CBP issued its Notice of Initiation of an Investigation and Interim Measures.³⁵ TRLED determined that there was reasonable suspicion that Island Home evaded the *Orders* by claiming the WCVs it imported into the United States were of Taiwanese origin when they were actually of Chinese origin.³⁶ TRLED based its findings on the information provided in the Allegation,³⁷ the fact the CF-28 response did not provide fulsome responses to CBP's questions, and the fact that certain requested information was not provided at all in the CF-28 response.³⁸

In accordance with 19 U.S.C. § 1517(e), CBP suspended the liquidation of each unliquidated entry of covered merchandise that entered on or after January 29, 2025, the date of the initiation; extended the period for liquidating each unliquidated entry of covered merchandise that entered before the date of the initiation of the investigation; and took additional measures necessary to protect the revenue of the United States.

³⁵ See CBP's notice letter titled, "Notice of Initiation of Investigation and Interim Measures – EAPA Case 8137," dated May 6, 2025 (NOI).

³⁶ *Id.*

³⁷ See Allegation.

³⁸ See Island Home CF-28 Response, received on March 8, 2025.

III. Post-Interim Measures

Requests for Information (RFIs)

On May 27, 2025, pursuant to 19 C.F.R. § 165.5, CBP sent a Request for Information (RFI) via FedEx to Ascension, the purported exporter, requesting information on the shipments to the Importer, as well as the affiliated manufacturer's production capabilities and capacities.³⁹ The address used was provided on the sales invoices provided by Island Home in its CF-28 response and was confirmed by the Dun & Bradstreet Business profile and Taiwanese Ministry of Economic Affairs data.⁴⁰ Ascension did not respond to CBP's RFI. CBP confirmed delivery of the RFI *via* FedEx.⁴¹ CBP provided Ascension with a second opportunity to respond to the RFI on June 20, 2025.⁴² CBP also confirmed delivery of the second RFI *via* FedEx.⁴³ CBP did not receive a response from Ascension to this second request.

On May 27, 2025, pursuant to 19 C.F.R. § 165.5, CBP sent an RFI via FedEx to EN-FA, the purported manufacturer, requesting information on the manufacturer's shipments to the Importer, as well as the manufacturer's production capabilities and capacities.⁴⁴ The address used was obtained through publicly available tax registration information and confirmed by the Dun & Bradstreet business profile and through photographs of the facility that were taken in October 2023.⁴⁵ EN-FA did not respond to CBP's RFI. CBP confirmed delivery of the RFI *via* FedEx.⁴⁶ CBP provided EN-FA with a second opportunity to respond to the RFI on June 20, 2025.⁴⁷ CBP did not receive a response from EN-FA to this second request and the RFI was returned to CBP.⁴⁸

On May 27, 2025, pursuant to 19 C.F.R. § 165.5, CBP sent a RFI to the importer, Island Home.⁴⁹ CBP sent the RFI to info@islandhomecabinets.com, the publicly listed email address for Island Home, and to jonsline@gmail.com, the email address for Island Home's president that was provided by Island Home's customs broker. Island Home did not respond to CBP's RFI. On June 16, 2025, CBP provided Island Home with a second opportunity to respond to the RFI with a due date of June 30, 2025.⁵⁰ On June 25, 2025, Island Home requested a 21-day extension to

³⁹ See Supplier RFI, dated May 27, 2025.

⁴⁰ See Island Home CF-28 Response; *see also* Allegation at Exhibits 11 and 14.

⁴¹ See Memo to the File: FEDEX Receipts for RFIs, dated August 11, 2025.

⁴² See Supplier RFI, dated June 20, 2025.

⁴³ See Memo to the File: FEDEX Receipts for RFIs, dated August 11, 2025.

⁴⁴ See Manufacturer RFI, dated May 27, 2025.

⁴⁵ See Memo to File: Taiwanese Company Information, dated August 14, 2025, at Attachments 1, 2, and 3.

⁴⁶ See Memo to the File: FEDEX Receipts for RFIs, dated August 11, 2025.

⁴⁷ See Manufacturer RFI, dated June 20, 2025.

⁴⁸ *Id.*

⁴⁹ See Importer RFI, dated May 17, 2025.

⁵⁰ See Second Attempt Request for Information for Island Home, dated June 16, 2025.

submit its RFI response.⁵¹ CBP granted a 7-day extension setting a new response due date of July 7, 2025.⁵² On July 7, 2025, Island Home requested an extension through “Monday, August 28, 2025, to submit a complete, fully compliant RFI package.”⁵³ CBP granted a 4-day extension, setting a new response due date of July 11, 2025.⁵⁴ On July 10, 2025, CBP was contacted by representatives of Sandler, Travis, and Rosenberg, P.A. (STR), informing us that the law firm was contacted by Island Home and was finalizing its engagement with and representation of Island Home.⁵⁵ CBP spoke with representatives of STR on July 11, 2025 and agreed to extend the deadline for Island Home’s RFI response to July 18, 2025.⁵⁶ STR did not end up representing Island Home and no RFI response was received by this final, extended deadline.

CBP Research

Public data available on Taiwan Company Network (TCN)⁵⁷ indicates that EN-FA (also known in Taiwan as “Yingfa Wood Industry Co., Ltd.”) is a manufacturer of “bamboo handicrafts (fishing tackle)” and “wooden handicrafts (except gambling).”⁵⁸ TCN also states that EN-FA acts “as an agent for distribution, quotation, and bidding of products of relevant manufacturers at home and abroad.”⁵⁹ This description is corroborated by the Dun & Bradstreet business profile of EN-FA which lists EN-FA as a “manufacturer of other products of wood and bamboo, wholesaler of furniture.”⁶⁰ The TCN business profile on EN-FA also lists three other companies that share an address with EN-FA: Hongjie Trading Co., Ltd., Qichao Industrial Co., Ltd., and Yingfa Enterprise Co., Ltd.⁶¹

Voluntary Factual Information and Written Arguments

CBP did not receive any voluntary factual information prior to the August 18, 2025, deadline. On September 16, 2025, Newport submitted timely written arguments.⁶² No party submitted responses to written arguments.

⁵¹ See Partial Grant of Island Home’s RFI Extension Request, dated June 27, 2025.

⁵² *Id.*

⁵³ See Partial Grant of Island Home’s RFI Extension Request, dated July 8, 2025.

⁵⁴ *Id.*

⁵⁵ See Memo to the File: Email Correspondence with Importer, dated August 11, 2025.

⁵⁶ *Id.*

⁵⁷ See Memo to the File: Taiwanese Company Information, dated August 14, 2025. TCN “is a professional business information platform for companies in Taiwan” and sources all information “from public sources such as the Department of Commerce of the Ministry of Economic Affairs of Taiwan.”

⁵⁸ *Id.*

⁵⁹ *Id.*

⁶⁰ *Id.*

⁶¹ *Id.*

⁶² See Newport Written Arguments, dated September 16, 2025.

IV. Analysis as to Evasion

Under 19 U.S.C. § 1517(c)(1)(A), to reach a determination as to evasion, CBP must “make a determination, based on substantial evidence, with respect to whether such covered merchandise entered into the customs territory of the United States through evasion.” The term “evasion” is defined as “the entry of covered merchandise into the customs territory of the United States for consumption by means of any document or electronically transmitted data or information, written or oral statement, or act that is material and false, or any omission that is material, and that results in any cash deposit or other security or any amount of applicable antidumping or countervailing duties being reduced or not being applied with respect to the covered merchandise.”⁶³

Adverse Inferences

Under 19 USC § 1517(c)(3) and EAPA regulations at 19 C.F.R. § 165.6(a), if “the importer, or the foreign producer or exporter of the covered merchandise fails to cooperate and comply to the best of its ability with a request for information made by CBP, CBP may apply an inference adverse to the interests of that party in selecting from among the facts otherwise available to make the determination as to evasion...”⁶⁴ As described above, CBP provided Island Home, Ascension, and EN-FA with the opportunity to reply to CBP’s RFIs; however, Island Home, Ascension, and EN-FA failed to provide any responses to CBP’s RFIs.

As a result of Island Home’s, Ascension’s, and EN-FA’s failures to respond to CBP requests for information in this investigation, and thus to fully cooperate to the best of their abilities, CBP’s ability to obtain information for its investigation was impeded significantly and CBP was unable to perform the necessary analysis to determine whether Island Home’s imports/exports of WCVs actually were produced in Taiwan. The record does not contain any information to corroborate Island Home’s claims regarding country of origin.

Since Island Home, Ascension, and EN-FA failed to cooperate to the best of their abilities by failing to respond to the RFIs, in accordance with 19 U.S.C. § 1517(c)(3)(A) and 19 C.F.R. § 165.6, CBP is drawing inferences adverse to the interests of the companies from the facts otherwise available on the administrative record. As a result, CBP finds that Island Home entered covered merchandise into the United States through evasion. In reaching its determination, TRLED relied on information on the record including, but not limited to:

⁶³ See 19 C.F.R. § 165.1.

⁶⁴ See also 19 U.S.C. § 1517(c)(3)(A).

Notice of Determination as to Evasion

1. Significant shifts in general trade patterns following the imposition of preliminary duties on Chinese WCVs.⁶⁵
2. Local reporting in Taiwan indicates that former producers of wooden furniture in Taiwan migrated to mainland China and Southeast Asia due to economic conditions affecting production in Taiwan. Therefore, there is not significant production of WCVs in Taiwan.⁶⁶
3. Online business profiles of EN-FA from both TCN and Dun & Bradstreet list EN-FA as a manufacturer of wooden and bamboo handicrafts and a wholesaler, not a manufacturer, of wooden furniture.⁶⁷
4. Bill of lading data indicates that Island Home received shipments from Ascension on vessels that originated in China.⁶⁸
5. Island Home did not provide documentation linking raw materials to finished products in its CF-28 response.⁶⁹
6. The parts listed in the production records do not match the parts listed in the packing lists submitted in Island Home's CF-28 Response.⁷⁰
7. Island Home did not provide employee timecards for EN-FA, failing to demonstrate that EN-FA employed the personnel required to manufacture the WCVs.⁷¹
8. Island Home did not provide proof of payment documentation for the entries requested, preventing CBP from linking the sales to the foreign supplier or manufacturer.⁷²

CBP is relying on this information to conclude that neither Ascension or EN-FA are able to produce the WCVs sold to Island Home, in accordance with the scope of the *Orders*, and instead imported Chinese-origin WCVs into Taiwan. Island Home, Ascension, and EN-FA all failed to respond to CBP's RFIs, in which we requested information regarding production, accounting practices and reconciliation of reported sales with financial statements. Without this requested information CBP lacks information to contradict the Alleger's Allegation.

In sum, CBP finds that there is substantial evidence that Chinese-origin WCVs were imported by Island Home into the United States during the POI by evasion by means of transshipment through Taiwan, and that said WCVs are covered by the *Orders* on WCVs from China.

⁶⁵ See Allegation at 8-9; See also NOI at 4; see also Newport Written Arguments at 4.

⁶⁶ See Allegation at 8 and Exhibit 9.

⁶⁷ See Memo to the File: Taiwanese Company Information, dated August 14, 2025.

⁶⁸ See Allegation at 9-10; see also Newport Written Arguments at 5.

⁶⁹ See CBP's CF-28 Requests and Island Homes' CF-28 Response at Exhibits 2.1, 2.2, 2.3, 3.1, 3.2, 3.3, 5.1, 5.2, and 5.3; see also Newport Written Arguments at 5.

⁷⁰ See CBP's CF-28 Requests and Island Homes' CF-28 Response at Exhibits 2.1, 2.2, 2.3, and entry packets; see also Newport Written Arguments at 5.

⁷¹ See CBP's CF-28 Requests; see also Island Homes' CF-28 Response; see also Newport Written Arguments at 5.

⁷² *Id.*

Consequently, the required cash deposits were not collected on the merchandise as of the onset of this investigation.⁷³

V. Actions Taken Pursuant to the Affirmative Determination of Evasion

Considering CBP's determination that Island Home entered covered merchandise into the customs territory of the United States through evasion, and pursuant to 19 U.S.C. § 1517(d) and 19 C.F.R. § 165.28, CBP will suspend or continue to suspend the entries subject to this investigation until instructed to liquidate these entries. For those entries previously extended in accordance with the interim measures, CBP will rate adjust and change those entries to type 03 and continue suspension until instructed to liquidate these entries. CBP will also evaluate the Importer's continuous bonds in accordance with CBP's policies and may require single transaction bonds as appropriate. None of the above actions precludes CBP or other agencies from pursuing additional enforcement actions or penalties.

Sincerely,



Victoria Cho
Director, Enforcement Operations Division
Trade Remedy Law Enforcement Directorate
CBP Office of Trade

⁷³ The rate applicable to these entries are the China-wide entity rate for the *Orders* on WCVs from China, unless otherwise specified by the Department of Commerce.